

Notice No:11042600290498

Date: 07/04/2026 10:07:04

Notification No. : G.O.(D) No. 15 Dated 28/04/2022

NOTIFICATION TO INTERMEDIARY FOR DISABLING ACCESS TO UNLAWFUL INFORMATION

Whereas, section 79(3)(b) of the Information Technology Act, 2000 provides that the exemption from liability of intermediaries for third party information, data, or communication link made available or hosted by them shall not apply if upon receiving actual knowledge, or on being notified by the appropriate Government or its agency that any information, data or communication link residing in or connected to a computer resource controlled by the intermediary is being used to commit the unlawful act, the intermediary fails to expeditiously remove or disable access to that material on that resource without vitiating the evidence in any manner.

Whereas, rule 3(1)(d) of the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 (hereinafter referred to as “IT Rules, 2021”) provides that an intermediary, on whose computer resource the information is stored, hosted or published, upon receiving actual knowledge in the form of an order by a court of competent jurisdiction or on being notified by the Appropriate Government or its agency under clause (b) of sub-section (3) of section 79 of the Act, shall not host, store or publish any unlawful information, which is prohibited under any law for the time being in force in relation to the interest of the sovereignty and integrity of India; security of the State; friendly relations with foreign States; public order; decency or morality; in relation to contempt of court; defamation; incitement to an offence relating to the above, or any information which is prohibited under any law for the time being in force.

Whereas, rule 7 of the IT Rules, 2021 provides that where an intermediary fails to observe these rules, the provisions of sub-section (1) of section 79 of the Act shall not be applicable to such intermediary and the intermediary shall be liable for punishment under any law for the time being in force including the provisions of the Act and the Bhartiya Nyaya Sanhita 2023.

The undersigned has been designated as a Nodal Officer for the purpose of notifying the intermediaries in respect to unlawful information as per section 79(3)(b) of the IT Act, 2000 read with rule 3(1)(d) of the IT Rules, 2021.

And whereas, the TAMIL NADU has found that the contents hosted or published on the GitHub intermediary platform at the following URLs is prohibited by law or being used to commit the unlawful act:

Sr. No.	IT Intermediary	URL/Page of Website/Content
1	GitHub	https://rkoots.github.io/election2026/#google_vignette

Brief Summary of the unlawful act: A content-blocking request has been received from the Superintendent of Police, social media Cell, regarding the above-mentioned GitHub posts, which has posted Projections on Vote Share and anticipated Seat winning of Tamil Nadu Legislative assembly elections. These surveys are posted without publishing the Sample size, Methodology, Margin of error and the Agency details conducting the survey. Thus, the posts are made without disclosing the methodology and are in violation of the Model Code of Conduct and have the potential to adversely impact the conduct of free and fair elections in Tamil Nadu.

Sr. No.	Reasons for holding the information unlawful.	Act Violated	Section / Rules
1	Decency or Morality	Bharatiya Nyaya Sanhita, 2023	353

Now therefore, in accordance with the above-mentioned provisions of law, the intermediary GitHub is hereby notified to remove and disable access to the concerned URLs within thirty-six hours of the issue of this communication without vitiating the evidence in any manner.

TAMIL NADU

This is a system-generated Notice; no signature is required.

To
GitHub